

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable David A. Silberman
800 North Humboldt Street, San Mateo, CA 94401
Department 11, Courtroom G
Monday August 31 2026 at 2 pm

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing to the newly assigned department pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept11@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 161 964 0802 Password: 734616

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
02:00 PM	
21-CIV-02862	DILLAN LOVELL, ET AL VS. ALAN COCHRAN, ET AL.
LINE 1	
DILLAN LOVELL ALAN COCHRAN	GREGORY C. CATTERMOLE

PARTY INTERVENOR: INFINITY INSURANCE COMPANY'S MOTION TO COMPEL AND REQUEST FOR SANCTIONS

TENTATIVE RULING:

This is a personal injury case arising from a motor vehicle accident. Intervenor Infinity Insurance Company's seeks to compel responses to its Form Interrogatories (Set One), Special Interrogatories (Set One), and Demand for Production of Documents (Set One), served to Plaintiff Mike Lovell. Plaintiff has not opposed this motion.

Intervenor's unopposed motion to compel discovery responses is GRANTED, in full. Intervenor's request for sanctions is GRANTED, in part, and DENIED in part. Sanctions in an amount of \$560 are awarded as described further below.

On July 16, 2025, Intervenor served electronic copies of Form Interrogatories (Set One), Special Interrogatories (Set One), and Demand for Production of Documents (Set One) to counsel for Plaintiff Mike Lovell. (Nguyen Decl., ¶ 2, Ex. A.) Plaintiff's responses were due August 18, 2025. (Id., ¶ 3.) Plaintiff requested a two-week extension, which was granted, extending the deadline to September 2, 2025. (Id., ¶ 4, Ex. A.) Plaintiff did not meet this deadline. (Id., ¶ 5.)

On September 9, 2025, Intervenor emailed Plaintiff's counsel regarding the status of the outstanding discovery requests. (Id., ¶ 5, Ex. B.) Plaintiff did not respond. (Id., ¶ 5.) On September 22, 2025, Intervenor sent a meet and confer request asking for a response by October 8, 2025. (Id., ¶ 6, Ex. C.) Plaintiff did not respond. (Id., ¶ 7.)

On October 16, 2025, Intervenor's counsel scheduled an IDC with the court. (Id., ¶ 8.) On November 13, 2025, and IDC was held and Plaintiff's counsel indicated that he would provide verified responses by December 1, 2025, and that Intervenor may proceed with a motion thereafter if needed. (Id., ¶ 9, Ex. D.) Plaintiff failed to meet that deadline, prompting Intervenor to file this motion on December 9, 2025. (Id., Ex. 10.) Plaintiff's counsel further represented to the Court on July 30, 2026 that he would respond to the discovery and moot this motion, but there is no indication that he has.

Parties may conduct discovery as to any matter not privileged that is relevant to the subject matter involved in the pending action. (See Code Civ. Proc., §§ 2030.010, subd. (a), 2031, subd. (a).) If a timely response to discovery demand is not made, the propounding party may move the Court for an order compelling the opposing party to respond. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).)

Here, the Form Interrogatories, Special Interrogatories, and Demand for Production of Documents that were served by moving party on Plaintiff on July 16, 2025, and relate to the nature and extent of the Plaintiff's bodily injury claims, the facts of the subject accident, the Plaintiff's liability contentions, the existence of insurance coverage, the identity of material witnesses, and related evidentiary facts. Plaintiff has failed to respond despite multiple extensions, an IDC Conference and multiple representations to counsel and/or the Court that he would. Plaintiff's counsel is warned that further conduct like this will not be tolerated by the Court.

Intervenor's motion to compel discovery responses is GRANTED.

Plaintiff shall serve verified responses without objections to Intervenor's Form Interrogatories (Set One), Special Interrogatories (Set One), and Demand for Production of Documents (Set One) within 10 days of notice of entry of this order.

The court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories and/or requests for production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c).)

Here, Intervenor's counsel requests sanctions of \$810.00, which includes attorney's fees for three hours of work at \$250.00 per hour, plus \$60 in filing fees. (Nguyen Decl., ¶ 12.) The estimate for attorney's fees includes time for "attending the hearing." (Id.) The court cannot grant sanctions for prospective attorney's fees (e.g. attending a hearing that has not yet been held, and may not be held at all.) Because counsel has not indicated how many of the hours he expected to incur in attending the hearing, the Court has subtracted one hour and will award two hours at \$250 for a total of \$560, which is a very reasonable amount for this motion.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

23-CIV-01165 ANGIE COLE VS. HAMPTON INN, ET AL.

LINE 2

ANGIE COLE
HAMPTON INN

JASON B. JAVAHERI

DEFENDANT SRI RAM ENTERPRISES, INC.'S MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION OF ISSUES JUDGMENT

TENTATIVE RULING:

For the reasons stated below, Defendant SRI Ram Enterprises, Inc.'s ("SRI") Motion for Summary Judgment ("MSJ"), filed June 11, 2026, is DENIED. (Code Civ. Proc. § 437c.) SRI's alternative Motion for Summary Adjudication ("MSA") is also DENIED.

The Court declines to rule on Defendant SRI's Aug. 20, 2026 Evidentiary Objections, which seek to exclude various statements/opinions in the declarations of Zachary Moore, Joellen Gill, and Robert Rauch (Aug. 10, 2026 Compendium of Evidence, Exhibits 18-20), on grounds that they are immaterial to the disposition of the motion. (Code Civ. Proc. § 437c(q).) As explained below, the Court finds that the evidence raises one or more triable issues that preclude the Court from granting summary judgment or adjudication, even without considering the Moore, Gill, and Rauch declarations.

Background

This negligence/premises liability case arises from Plaintiff Angie Cole's fall from a curb, and injury, at about 9:50 p.m. on May 15, 2020, at a Hampton Inn Hotel located at 300 Gateway Blvd. in South San Francisco. Defendant SRI owns and operates the hotel. Plaintiff alleges that she was walking on an exterior walkway adjoining the hotel parking lot, while holding several items in her hands, and looking straight forward, and did not see/notice a roughly 5-6 inch curb/step-down in front of her. Because she did not see the curb/step-down, she fell as she stepped down the curb, causing injury.

SRI's motion argues that the exterior walk-way, including the curb/step-down, was "open and obvious," because the area was well-lit, and because the curb/step-down was marked with yellow and black coloring that stood out from the remainder of the (white) sidewalk. SRI argues that Plaintiff did not notice the curb because she was carrying several items and was not paying proper attention to her surroundings. SRI argues that because the curb/step-down was open and obvious, Plaintiff's negligence and premises liability claims fail as a matter of law, because Plaintiff's injury was not foreseeable, and because the Plaintiff's own carelessness caused her fall, rather than any negligence on the part of SRI.

Viewing the evidence in a light favorable to Plaintiff, at it must, and drawing all reasonable inferences from the evidence, the Court finds that triable issues of fact exist as to whether the curb/drop-down presented an open and obvious condition/risk of injury, whether SRI provided sufficient warning of the curb/drop-down and whether Defendant could have or should have taken action to prevent the risk of injury, which prevents the Court from adjudicating Plaintiff's claims via summary judgment/adjudication.

Discussion

A motion for summary judgment shall be granted if the papers submitted show there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc. Sect. 437c(c).) A defendant has met its burden of showing that a cause of action has no merit if defendant shows that one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. (Sect. 437c(p)(2).) If a defendant meets this burden, the burden shifts to plaintiff to show that a triable issue of one or more material facts exists to that cause of action, or a defense thereto. (*Id.*) “A triable issue of material fact exists if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion, in accordance with the applicable standard of proof.” (*Id.*; *Pasadena Metro Blue Line Constr. Auth. v. Pac. Bell Tel. Co.* (2006) 140 Cal.App.4th 658, 663.)

Because summary judgment denies the adverse party a trial, it should be granted with caution. (*Assilzadeh v. California Fed. Bank* (2000) 82 Cal.App.4th 399, 409.) Summary judgment law turns on issue finding rather than issue determination. (*Diep v California Fair Plan Ass’n* (1993) 15 Cal.App.4th 1205, 1207.) The Court does not decide the merits of the issues, but merely discovers whether there are issues to be tried and whether the parties possess evidence that demands the analysis of a trial. (*Melamed v City of Long Beach* (1993) 15 Cal.App.4th 70, 76.) Declarations of the moving party are strictly construed, those of the opposing party are liberally construed, and doubts as to whether a summary judgment should be granted must be resolved in favor of the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843-856.)

The elements of a cause of action for negligence are: (1) a duty on the part of defendant toward plaintiff; (2) defendant's breach of that duty; and (3) harm to the plaintiff caused by that breach. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1142.) “As in a general negligence cause of action, a plaintiff bringing an action for premises liability based on a negligence theory must plead and prove that the defendant breached a duty of care owed to the plaintiff that proximately caused injury and damages.” (*Annocki v. Peterson Enterprises, LLC* (2014) 232 Cal.App.4th 32, 37; CACI 1000 [“Premises Liability—Essential Factual Elements.”]) Premises liability “is grounded in the possession of the premises and the attendant right to control and manage the premises.” But the duty arising from possession and control of property is adherence to the same standard of care that applies in negligence cases. (*Id.*)

“Those who own, possess, or control property generally have a duty to exercise ordinary care in managing the property in order to avoid exposing others to an unreasonable risk of harm.” (*Id.*, citing *Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1156.) “But an accident on a landowner’s property does not necessarily create premises liability.” (*Nicoletti v. Kest* (2023) 97 Cal.App.5th 140, 145.) “Whether a duty should be imposed on a defendant depends on a variety of policy considerations, known as the *Rowland* factors.” (*Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 446.) “The ‘most important’ of these considerations or factors is ‘the foreseeability of injury to another.’” (*Nicoletti*, 97 Cal.App.5th at 145.) Accordingly, a “court’s task—in determining ‘duty’—is not to decide whether a *particular* plaintiff’s injury was reasonably foreseeable in light of a *particular* defendant’s conduct, but rather to evaluate more generally whether the category of negligent conduct at issue is sufficiently likely to result in the kind of harm experienced that liability may appropriately be imposed on the negligent party.” (*Id.*) “Foreseeability, when analyzed to determine the existence or scope of a duty, is a question of law to be decided by the court.” (*Id.*)

Although the factors to be weighed in determining the scope of a defendant's duty will vary in each case, the two primary considerations are the foreseeability of the harm and the burden on the defendant of protecting against the harm. (*Lawrence v. La Jolla Beach & Tennis Club, Inc.* (2014) 231 Cal.App.4th 11, 23-24.) In cases where the burden of preventing future harm is great, a high degree of foreseeability may be required. (*Id.*) On the other hand, in cases where there are strong policy reasons for preventing the harm, or the harm can be prevented by simple means, a lesser degree of foreseeability may be required. (*Id.*)

"A harm is typically not foreseeable if the 'dangerous condition is open and obvious.'" (*Nicoletti*, 97 Cal.App.5th at 145.) "Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition." (*Jacobs*, 14 Cal.App.5th at 447) "In that situation, owners and possessors of land are entitled to assume others will 'perceive the obvious' and take action to avoid the dangerous condition." (*Nicoletti*, 97 Cal. App. 5th at 145 [quoting *Jacobs*, at p. 447].) Where reasonable minds could differ on whether a condition is open and obvious or where the evidence does not conclusively establish the open and obvious nature of the condition, a triable issue of material fact exists precluding summary judgment. (*Kasparian v. AvalonBay Communities* (2007) *Inc.*, 156 Cal.App.4th 11, 25; *Fernquist v. San Francisco Presbytery*, 152 Cal. App. 2d 405, 411, 313 P.2d 192, 195 (1957) ("Normally, the question whether a danger is obvious and should have been appreciated is one of fact, not of law.").)

The issues of breach of duty and causation "are ordinarily questions of fact for the jury's determination." (*Lawrence v. La Jolla Beach & Tennis Club, Inc.*, *supra*, 231 Cal.App.4th at 32; *Parker v. City and County of San Francisco* (1958) 158 Ca2d 597, 604 ["Generally, the issue of negligence is a question for the jury."]; *Garcia v. Hoffman* (1963) 212 Cal.App. 2d 530, 542 ["Even where the facts are undisputed, if reasonable minds might draw different conclusions upon the question of negligence, the question is one of fact for the jury."]; *Raven H. v. Gamette* (2007) 157 Cal.App.4th 1017, 1029–1030 ("Whether a defendant's conduct actually caused an injury is a question of fact ... that is ordinarily for the jury").

SRI offers evidence that, to its knowledge, no prior injury/fall had occurred at the location where Plaintiff fell. (June 11, 2026 Patel Decl., ¶ 6.) SRI also points to evidence indicating that although Plaintiff's incident occurred at night, visibility/lighting was good, and the curb/step-down was prominently marked with yellow and black coloring that distinguished it from the remainder of the white cement, thereby drawing attention to the curb. SRI argues that these yellow and black markings created an open and obvious condition (step-down) that Plaintiff, had she been paying better attention, would have seen. Similarly, SRI's expert, Carl Beels, opines that the curb/drop-down presented an open and obvious condition. His declaration states, in part:

16. Notable, effective, and intuitively obvious visual cues included: a) the retaining curb adjacent to the landscape at the back of the curb ramp (the left side of the curb ramp from Plaintiff's approach perspective); b) the bright yellow truncated domes, aka detectable warnings built into the ramp; and c) a retroreflective yellow/black caution tape, approximately 20 inches long and 2 inches wide, pasted onto the concrete surface immediately adjacent to the subject step (see Figure 13). Both the bright yellow detectable warnings and the yellow/black caution tape will naturally and foreseeably catch an alert and attentive person's eye upon approach. This sort of safety marking is widely accepted and routinely used for the precise purpose of catching a person's attention as a cautionary alert to look at the ground for some sort of change such as a step down, as in the subject instance. Because of the open and obvious nature of the subject step, in particular

being clearly marked and highlighted with the yellow/black caution tape, there was no need for any structural changes or additions such as handrails or guardrails.

(Beels Decl., ¶ 16; see also id., ¶¶ 17-18 [opining that the lighting was adequate.])

SRI has good arguments on this point, but arguably, reasonable minds could differ. Attached to the Beels declaration are photographs, taken after-the-fact, which show Plaintiff's viewpoint as she approached the curb/drop-off on the date of the incident. (June 11, 2026 Decl. of Carl Beels.) Plaintiff testified that just prior to her fall, as she was looking straight ahead, she noticed what appeared to be a ramp/incline ahead of her. (June 11, 2026 Finch Decl., Ex. 3 [Plaintiff's Tr. at 72; 180; 207.]) She believed that the yellow marking on the ground indicated an upcoming ramp/incline, but that she did not expect a sudden drop. (Id.)

Arguably, the Beels photographs, combined with other evidence (including Plaintiff's testimony), supports an inference that the curb/drop-down was not "open and obvious" at the time of the incident. Arguably, from Plaintiff's perspective, the drop-down was not obvious. (See photographs attached to the Beels declaration.) The yellow coloring on the ground immediately past the drop-down was clearly an indication of *something*—which one could presume was the upcoming incline/ramp. There is no evidence that Plaintiff was looking at her phone or otherwise looking elsewhere. Plaintiff testified that she was looking straight ahead, as pedestrians often do. Whereas the curb/drop-down appears to be quite apparent from a side-view (see Plaintiff's Aug. 10, 2026 Compendium, Ex. 3 [showing a daytime, side-view of the curb/drop-down]), it (arguably) was not nearly as apparent from Plaintiff's perspective. (See photographs to June 11, 2026 Beels Decl.) (Compare with the June 11, 2026 Patel Decl., Ex. 1 [photo from the opposite direction, in which the step-up appears more obvious/apparent]). Arguably, a reasonable fact finder could conclude that the drop-down was not open and obvious to Plaintiff, that the yellow and black coloring did not provide sufficient warning of the drop down, and that Plaintiff reasonably believed that the yellow (and black) coloring indicated an upcoming incline rather than a drop-down. Accordingly, the Court cannot conclude, as a matter of law, that the curb presented an "open and obvious" risk/condition that bars Plaintiff's claims.

Further, and independently, a triable issue appears to exist as to whether SRI could or should have replaced the curb/drop-down with a gradual decline, which presumably would have lessened or eliminated the fall risk. SRI's expert (Carl Beels) does not address the curb design, nor explain why a curb/drop-down was placed in that location rather than a decline. If a slightly different design (a ramp or decline, rather than a drop-down) was feasible and would eliminate a fall risk, then arguably, SRI should have implemented a different design. It is for the trier of fact to consider that issue. (*Osborn v. Mission Ready Mix* (1990) 224 Cal. App. 3d 104, 122 ("Thus, although the obviousness of a danger may obviate the duty to warn of its existence, if it is foreseeable that the danger may cause injury despite the fact that it is obvious (for example, when necessity requires persons to encounter it), there may be a duty to remedy the danger, and the breach of that duty may in turn form the basis for liability, if the breach of duty was a proximate cause of any injury."); *Kaney v. Custance* (2022) 74 Cal. App. 5th 201, 215 (2022) (same); see also *Martinez v. Chippewa Enters., Inc.* (2004) 121 Cal. App. 4th 1179, 1184 ("But the obviousness of a condition does not necessarily excuse the potential duty of a landowner, not simply to warn of the condition but to rectify it. The modern and controlling law on this subject is that 'although the obviousness of a danger may obviate the duty to warn of its existence, if it is foreseeable that the danger may cause injury despite the fact that it is obvious (e.g., when necessity requires persons to encounter it), there may be a duty to remedy the danger, and the breach of that duty may in turn form the basis for liability....'").)

SRI points to evidence showing that Plaintiff was carrying several items at the time of her fall, including food and drink items. (Plaintiff's Tr. at 65-66). Plaintiff testified that she was "looking at the sidewalk straight ahead" while she was walking, and was not looking down. (Id. at 66-67; 207). SRI argues that Plaintiff's own carelessness/lack of attentiveness caused her fall/injury. But Plaintiff's own negligence, if any, does not necessarily bar recovery; it merely triggers the principles of comparative negligence. (See CACI 405.) And SRI's negligence, if any, does not need to have been the sole cause of Plaintiff's injury. A defendant's conduct is a cause in fact of a plaintiff's injury if it was a *substantial factor* in bringing about the injury. (*Gordon v. Havasu Palms, Inc.* (2001) 93 Cal.App.4th 244, 252.) A substantial factor in causing harm is a factor that a reasonable person would consider to have contributed to the harm. CACI 430 (Causation-Substantial Factor). It must be more than a remote or trivial factor, but *it does not have to be the only* cause of the harm. Id. As with the issue of "breach," causation normally presents an issue of fact, and thus typically is not amenable to summary adjudication. Id. ("The issue of causation is usually a question for the jury.")

Here, regardless of whether Plaintiff was negligent, the evidence raises a triable issue as to whether SRI's actions/omissions were *also* a "substantial factor" in causing Plaintiff's injuries. CACI 430 ("It does not have to be the only cause of the harm."). The question of whether Plaintiff was the *only* negligent party is an issue for the fact finder to decide. (See *Aguilar v. Atlantic Richfield Co.*, *supra*, at 843-856 [doubts as to whether a summary judgment should be granted must be resolved in favor of the opposing party]).

For the foregoing reasons, SRI's motion for summary judgment/adjudication is denied.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

24-CIV-00660 ANDREW G WATTERS VS. SIDDHARTH BREJA, ET AL.

LINE 3

ANDREW G. WATTERS
SIDDHARTH BREJA

JERAMY STEPHEN STONE
PRO SE

DEFENDANT SIDDHARTH BREJA'S MOTION FOR ORDER AWARDING APPELLATE COSTS

TENTATIVE RULING:

The Court notes that the Motions for Order Awarding Appellate Costs and Motion to Enforce Appellate Mandate (the "Motions") brought by Defendant/Cross-Complainant Siddharth Breja ("Cross-Complainant"), provide that the above-entitled matter was set in Department 19. However, effective May 11, 2026, by order of the Presiding Judge pursuant to San Mateo County Superior Court Local Rule 3.200(a), this matter was reassigned for all purposes, including the instant hearing, to the Honorable David A. Silberman, Department 11, located at 800 North Humboldt Street, San Mateo, CA 94401, Courtroom G. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].) The motions should have been renoticed. But the error is understandable and waived.

The Court further notes that Defendant's proofs of service includes his declaration that he served the moving papers himself, which violates Code of Civil Procedure section 1013a, subdivision (1). Plaintiff does not object and has responded, so the Court finds no prejudice and that the defect has been waived. But Defendant is on notice that he cannot validly continue to serve papers himself.

Both of Defendant's Motions are GRANTED and this case is STAYED pursuant to Code of Civil Procedure section 1281.4 during the pendency of the arbitration (commencing eleven days from entry of this order). Plaintiff Andrew Watters IS ORDERED to either dismiss his claims in this action or commence formal arbitration process within ten (10) days of entry of this order.

Background

This action arises over a fee dispute. Plaintiff/Cross-Defendant Andrew G. Watters ("Cross-Defendant") is an attorney who in 2023 had represented Cross-Complainant in a dissolution action pursuant to a written contract. Cross-Complainant retained Cross-Defendant on May 1, 2023, shortly before the trial scheduled for June 6, 2023. The parties agreed that Cross-Defendant's attorney's fees would not exceed \$20,000 through the end of trial, specifying further that Cross-Complainant would pay to Cross-Defendant a \$10,000 initial retainer, and a \$10,000 trial deposit. Cross-Complainant paid \$10,000 with his American Express card, and wired \$10,000 to Cross-Defendant's trust account with Chase Bank.

Cross-Defendant alleges that Cross-Complainant exercised an inappropriate level of control over his work, including drafting his own legal briefs and sending around 150 emails and at least 100 text

messages during less than 30 days' representation, which ended on May 26, 2023. Cross-Defendant sent Cross-Complainant a pre-bill with a preliminary accounting. Cross-Complainant then asked for his money back despite having agreed that the first \$10,000 was non-refundable, and having been given the pre-bill showing that the total bill exceeded the initial deposit and retainer.

The Complaint alleges that Cross-Complainant then engaged in a scheme to get his money back by filing a fraudulent complaint with Chase Bank, seeking to have the \$10,000 wired back from Cross-Defendant's client trust account. Cross-Defendant alleges that Cross-Complainant committed some type of fraud because the latter's representations caused Chase Bank to close Cross-Defendant's account. Cross-Complainant also initiated a refund request for the \$10,000 with American Express, and American Express then took \$10,000 from Cross-Defendant's Chase Bank account without prior notice.

On June 27, 2023, Cross-Defendant filed a complaint in United States District Court, Northern District of California, based on similar allegations. On January 18, 2024, the federal action was dismissed without prejudice based on lack of subject matter jurisdiction. Thus, on February 6, 2024, Cross-Defendant filed this action against Cross-Complainant and nominal defendants Chase Bank and American Express, alleging eight causes of action. The Court denied Cross-Complainant's Motion to Compel Arbitration, which order Cross-Complainant appealed on September 19, 2024. The Court of Appeal reversed on the ground of its finding that Cross-Complainant's conduct did not constitute waiver of his right to compel arbitration under the parties' legal representation agreement, and ordered that Cross-Complainant was to recover his costs. (Remittitur, issued on November 26, 2026, and filed in this action on December 5, 2025 (the "Remittitur"), p.1.)

Through the Motions, Cross-Complainant asks the Court for an Order awarding him appellate costs in the amount of \$1,089.12 (Cal. Rules of Court, rule 8.278) pursuant to the Remittitur, and directing the Clerk to enter judgment accordingly; he also asks the Court to enforce the remittitur mandate and stay this case.

Costs

In its Remittitur, the Court of Appeal awarded appellate costs to Cross-Complainant as described *supra*. Accordingly, on December 2, 2025, Cross-Complainant timely filed and served a verified Memorandum of Costs on Appeal, claiming appellate costs of \$1,089.12. (Cal. Rules of Court, rule 8.278(c)(1); Breja Decl., ¶ 4, & Exh. 2.) The costs are reasonable, and fall within the scope of California Rules of Court, rule 8.278(d)(1).

Cross-Defendant had 15 days after service of the Memorandum of Costs to file and serve a motion to strike or tax the appellate costs claimed, plus any applicable service extension. (Cal. Rules of Court, rules 8.278(c)(2) & 3.1700(b)(1).) Though this period expired on or about December 19, 2025, Cross-Defendant made no payment nor indicated any intent to pay through the date of Cross-Complainant's Declaration, despite Cross-Complainant's efforts to meet and confer on this point. (Breja Decl., ¶¶ 5-9, & Exhs. 3 & 4.)

Cross-Defendant's arguments that the Motion should be denied are unavailing.

Cross-Defendant asserts that since Cross-Complainant requested arbitration, this action has been stayed (Bus. & Prof. Code, § 6201, subd. (c)). However, although no arbitration stay was in effect during the time in which Cross-Defendant could have brought a motion to strike or tax costs, Cross-Defendant failed to do so. Cross-Defendant asserts the incomplete sentence that "Upon the filing of an appropriate request for arbitration, with the stay to remain in force until the arbitration terminates" (Opp., 5:5-6), while repeatedly also asserting that Cross-Complainant's request for arbitration is futile or otherwise inappropriate (*see, e.g., id.*, 2:2-4, 6:3-6).

Cross-Defendant also appears to refer to the stay effected by the Court of Appeal on July 24, 2025 (*see, e.g., id.*, 5:15-16)—while declining to tell this Court that the very same order expressly provides that, "Unless otherwise ordered, the stay will dissolve upon issuance of the remittitur in the appeal. (Cal. Rules of Court, rule 8.272.)" (Court of Appeal, First Appellate District, Case No. A171728, docket for July 24, 2025, Order Granting Petition for Writ of Supersedeas.) Cross-Defendant further asserts that Cross-Complainant was required to file a noticed motion to lift the stay, citing California Rules of Court, rule 3.650—and *Levinson Arshonsky & Kurtz LLP v. Kim* (2019) 35 Cal.App.5th 896 (*Levinson*), a case that specifies that this is required *pursuant to the Mandatory Fee Arbitration Act (MFAA)*. (*Levinson, supra*, 35 Cal.App.5th 896, 906.) The rule requires a notice, not a noticed motion. That rule also provides that Cross-Complainant had to provide a notice of stay (Cal. Rules of Court, rule 3.650(a) & (b)(1)), which the Court's records show him to have done on July 24, 2025 (the "Notice of Stay"), and which notice shows the Order of the Court of Appeal providing that, "Unless otherwise ordered, the stay will dissolve upon issuance of the remittitur in the appeal. (Cal. Rules of Court, rule 8.272.)" (Notice of Stay, p.4.) Moreover, Cross-Defendant does not mention that if Cross-Complainant failed to file a notice that the stay was lifted, then Cross-Defendant was required to do so:

When a stay is vacated, is no longer in effect, or is modified, the party who filed the notice of the stay must immediately serve and file a notice of termination or modification of stay. *If that party fails to do so, any other party in the action who has knowledge of the termination or modification of the stay must serve and file a notice of termination or modification of stay.* Once one party in the action has served and filed a notice of termination or modification of stay, other parties in the action are not required to do so.

(*Id.*, rule 3.650(d) (emphasis added).) Here, the Court of Appeal already directed that the stay would dissolve automatically upon its issuance of the Remittitur. (Court of Appeal, First Appellate District, Case No. A171728, docket for July 24, 2025, Order Granting Petition for Writ of Supersedeas.)

Cross-Defendant's invocation of section 473 is unavailing as well. In pertinent part, the statute provides that:

The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect.
Application for this relief shall be accompanied by a copy of the answer or other pleading

proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

Code Civ. Proc., § 473, subd. (b).) Cross-Defendant's not having filed a motion to strike or tax costs by about December 19, 2025, is not a "judgment, dismissal, order, or other proceeding taken against the party" within the scope of the statute. Even if it were, however, a motion filed pursuant to the statute even as early as the date on which the Opposition was filed (August 18, 2026) would have been untimely, as the statute would not reach beyond June 19, 2026.

Moreover, as noted above, the Remittitur awarding appellate costs to Cross-Complainant issued on November 26, 2025, and was filed in this action on December 5, 2026. (Remittitur; *see also* Court of Appeal, First Appellate District, Case No. A171728, docket for November 26, 2025.) Even if the Remittitur were to be treated as the judgment whence Cross-Defendant seeks relief, a motion filed pursuant to the statute even as early as the date on which the Opposition was filed would have been untimely *a fortiori*. Thus, not only is there no motion pursuant to the statute before the Court, but it would also be fruitless for Cross-Defendant to bring one.

Enforcement

In general, when a judgment is reversed and remanded with directions, " 'those directions are binding on the trial court and *must* be followed.' " (*Ayyad v. Sprint Spectrum, L.P.* (2012) 210 Cal.App.4th 851, 860, 148 Cal.Rptr.3d 709; accord, *Butler v. Superior Court of Los Angeles County* (2002) 104 Cal.App.4th 979, 982, 128 Cal.Rptr.2d 403.) The order of the appellate court, as stated in the remittitur, defines the scope of the trial court's jurisdiction to act, and action which does not conform to the reviewing court's directions is unauthorized and void. (*Griset v. Fair Political Practices Com.* (2001) 25 Cal.4th 688, 701, 107 Cal.Rptr.2d 149, 23 P.3d 43; *Ayyad, supra*, at p. 860, 148 Cal.Rptr.3d 709.)

In re J.M. (2024) 103 Cal.App.5th 745, 755 [323 Cal.Rptr.3d 430, 438], *review dismissed, cause remanded* (Cal. 2025) 331 Cal.Rptr.3d 902 [567 P.3d 72]

Initially, the Court notes that plaintiff's position again is that defendant's stay is still in effect because defendant has not requested the court terminate the stay (Stone Decl. ¶23.) Again, that is inaccurate because the terms of the stay of supersedeas reflect that the stay will dissolve upon issuance of the remittitur in the appeal pursuant to California Rules of Court, rule 8.272. (Notice of Appellate Stay of Proceedings filed July 24, 2025.) Remittitur was filed in this Court on December 5, 2025; thus the proceedings have not been stayed since then.

The parties main dispute is over whose responsibility it is to initiate arbitration. This petty squabble is academic. This case cannot proceed unless arbitration is at least initiated/attempted. So Plaintiff has two choices: initiate arbitration or dismiss his claims in this action.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling

pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

24-CIV-00660 ANDREW G WATTERS VS. SIDDHARTH BREJA, ET AL.

LINE 4

ANDREW G WATTERS
SIDDHARTH BREJA

JERAMY STEPHEN STONE
PRO SE

DEFENDANT SIDDHARTH BREJA'S MOTION TO ENFORCE APPELLATE MANDATE; AND DISMISS PLAINTIFF'S COMPLAINT FOR FAILURE TO PROSECUTE (IN THE ALTERNATIVE)

TENTATIVE RULING:

Please refer to the tentative ruling for Line 3, which is hereby incorporated by reference and serves as the tentative ruling for Line 4.

02:00 PM

24-CIV-01784 NATALIYA BANKOVA, ET AL. VS. SAMUEL MARTINEZ

LINE 5

NATALIYA BANKOVA
SAMUEL MARTINEZ

JUAN M. SIMON
IVAN F. HIGUERA

DEFENDANT: SAMUEL MARTINEZ'S MOTION FOR ORDER DEEMING ADMITTED MATTERS SPECIFIED IN REQUESTS FOR ADMISSION (SET ONE) AND FOR MONETARY SANCTIONS [C.C.P. 2033.280]

TENTATIVE RULING:

Defendant Samuel Martinez's filed two Motions to Deem Facts Admitted as to two separate Requests for Admission, Set One, propounded on Plaintiffs Alice and Natalia Bankova on May 15, 2025. Both appear to be unopposed but are nevertheless DENIED without prejudice due to lack of proper service. Defendant apparently failed to properly serve the supporting documents as to either motion. On December 11, 2025 Defendant filed two almost identical proofs of service for the two motions (they appear only to differ as line spacing). In both instances they indicate that Defendant served "NOTICE OF MOTION AND I MOTION FOR ORDER DEEMING I ADMITTED MATTERS I SPECIFIED IN REQUESTS FOR ADMISSION (SET ONE) AND FOR MONETARY I SANCTIONS [C.C.P. § 2033.280]". However, neither proof indicates that Defendant served the Memoranda of Points and Authorities, Declarations or Proposed Orders.

The Court is also uncertain as to whether Defendant's meet and confer efforts were sufficient. While Defendant did email Plaintiffs, when Plaintiffs responded, Defendant apparently failed to follow-up in any manner. While the Court does not criticize Defendant for this, nor excuse Plaintiffs' apparent failure to follow-up, resorting to motions practice without a more vigorous attempt for informal resolution is not a good use of judicial resources. Accordingly, before refiling these Motions, Defendant and Plaintiff are Ordered to have a video or in person meet and confer about both of these motions **as well as Defendant's three additional discovery motions calendared for December 14, 2026**. If the Plaintiffs do not respond to reasonable attempts to schedule the meet and confer in the month of September, Defendant shall email Department 11 (copying Plaintiffs) and request a Case Management Conference. If the meet and confer occurs and fails to resolve all of the motions, Defendant and Plaintiffs are Ordered to reach out to Department 30 and schedule an Informal Discovery Conference on all five motions before refiling any motion. Failure to demonstrate compliance with these Orders may result in the December 14, 2026 Motions being taken off calendar.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. The Court will issue the Order.

02:00 PM

24-CIV-01784 NATALIYA BANKOVA, ET AL. VS. SAMUEL MARTINEZ

LINE 6

NATALIYA BANKOVA
SAMUEL MARTINEZ

JUAN M. SIMON
IVAN F. HIGUERA

DEFENDANT: SAMUEL MARTINEZ'S MOTION FOR ORDER DEEMING ADMITTED MATTERS SPECIFIED IN REQUESTS FOR ADMISSION (SET ONE) AND FOR MONETARY SANCTIONS [C.C.P. 2033.280]

TENTATIVE RULING:

Please refer to the tentative ruling for Line 5, which is hereby incorporated by reference and serves as the tentative ruling for Line 6.

02:00 PM

25-CIV-08165 CASTULO EDEN VERDUZCO MARTINEZ VS. X-PRESS GLAZING LLC, ET AL.
LINE 7

CASTULO EDEN VERDUZCO MARTINEZ
X-PRESS GLAZING LLC A CALIFORNIA LIMITED LIABILITY COMPANY

ANNA COUGHLIN

DEFENDANT: APOLONIO RAMOS'S MOTION TO QUASH SERVICE OF SUMMONS

TENTATIVE RULING:

Defendant Apolonio Avendanos Ramos' Motion to Quash Service of Summons is DENIED for the reasons provided below.

"Compliance with the statutory procedures for service of process is essential to establish personal jurisdiction." (*Rios v. Singh* (2021) 65 Cal.App.5th 871, 880; see *Renoir v. Redstar Corp.* (2004) 123 Cal.App.4th 1145, 1152.) A defendant may challenge a purported attempt to serve process and move to quash service of summons. (Code of Civ. Proc., § 418.10, subd. (a)(1).) On such a motion, the plaintiff bears the burden of establishing compliant service of process by a preponderance of the evidence. (*Lebel v. Mai* (2012) 210 Cal.App.4th 1154, 1160.) Here, Plaintiff Castulo Eden Verduzco Martinez carries this burden.

According to the proof of service, the manner of service was substituted service. (Aug. 18, 2026 Declaration of Anna Coughlin ("Coughlin Decl."), exh. A, § 5b.) A summons may be served in this manner "[i]f a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served[.]" (Code Civ. Proc., § 415.20, subd. (b)(1).) "Ordinarily, two or three attempts at personal service at a proper place and with correct pleadings should fully satisfy the requirement of reasonable diligence and allow substituted service to be made." (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 373.)

The process server's declaration states that he made three attempts to serve Ramos personally at Defendant Apolonio Avendanos Ramos' residence before leaving the papers with Ramos' mother after the third attempt. (Coughlin Decl., exh. A, p. 3.) Given that courts are "to construe the process statutes liberally to effectuate service and uphold the jurisdiction of the court if actual notice has been received by the defendant[.]" the Court finds the three attempts shown here sufficiently demonstrate reasonable diligence. (*Espindola v. Nunez* (1988) 199 Cal.App.3d 1389, 1393.)

To complete substituted service on a natural person, a copy of the summons and complaint must be left "at the person's dwelling house ... in the presence of a competent member of the household ... who shall be informed of the contents thereof ... and ... thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left." (Code Civ. Proc., § 415.20, subd. (b).)

The declaration states that the process server left a copy of the summons and complaint with Ramos' mother at Ramos' dwelling house, informed of the general nature of the papers, and then mailed copies to

the same address. (Coughlin Decl., exh. A, pp. 1, 4.) The Court finds this shows that service was completed as required by statute.

The only argument in opposition to this proof is a conclusory statement that the process server served the papers “without following the guidelines on how to properly serve the summons.” (Dec. 11, 2025 Motion, p. 3, l. 2.) The motion does not identify what these guidelines are or specify in what manner the process server did not follow them. More importantly, the validity of service depends only on compliance with law, not ‘guidelines.’

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

26-CLJ-00451 WELLS FARGO BANK, N.A. VS. CHRISTOPHER A BERG

LINE 8

WELLS FARGO BANK, N.A.
CHRISTOPHER A. BERG

STEPHANIE RAMOS
PRO PER

PLAINTIFF: WELLS FARGO BANK'S MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A.'s Motion for an Order Deeming the Truth of the Matters Specified in Plaintiff's Request for Admissions as Admitted is DENIED without prejudice. It appears from the proof of service that Defendant was served by mail, but the mailing did not include the defendant's apartment number (which is included on the Proof of Service of the summons and in the Court's file). Accordingly, and in light of the lack of opposition, the Court has no way of knowing whether the papers were actually delivered to Defendant.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the moving party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

**UD LAW AND MOTION CALENDAR
MONDAY, AUGUST 31, 2026**

02:00 PM

26-UDL-00672 THE JOHN STEWART COMPANY VS. KAIYA E. MORGANE

LINE 9

THE JOHN STEWART COMPANY
KAIYA E. MORGANE

MERCEDES A. GAVIN
PRO PER

PLAINTIFF: JOHN STEWART COMPANY'S MOTION TO COMPEL DEFENDANT KAIYA E. MORGANE'S RESPONSES TO PLAINTIFF'S DISCOVERY AND FOR SANCTIONS

TENTATIVE RULING:

The Motion of Plaintiff The John Stewart Company ("Plaintiff") to Compel Responses to Form Interrogatories - General, Set One, Form Interrogatories – Unlawful Detainer, Set One, and Request for Production of Documents, Set One, and to Deem Admitted Request for Admissions, Set One, is GRANTED.

Plaintiff establishes that it properly served Defendant Kaiya E. Morgane ("Defendant") with this discovery. (Gavin Decl., ¶¶ 2-6, and Exhs. 1-5.) Defendant failed to provide responses. (Id., ¶ 7.) Plaintiff also filed a proof of service showing that it properly served Defendant with this Motion. (Proof of Service filed August 12, 2026.) Defendant has not opposed this Motion.

Accordingly, Defendant is ORDERED to provide verified responses, without objections, to the form interrogatories and request for production of documents, and produce all responsive documents to the request for production of documents, within five days of service of written notice of entry of the order by Plaintiff.

The matters set forth in Plaintiff's Request for Admissions, Set One, are also DEEMED ADMITTED against Defendant.

Plaintiff's Request for Sanctions is GRANTED. On a motion to compel responses to interrogatories and requests for production, the court shall impose a monetary sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c).) Further, on a motion to deem requests for admissions admitted, it is mandatory that the court impose a monetary sanction on the party whose failure to serve a timely response to the requests for admission that necessitated the motion. (Code Civ. Proc., § 2033.280, subd. (c).) The court finds that sanctions are warranted based on Defendant's failure to respond to the discovery. Defendant is to pay Plaintiff \$585.00 sanctions within thirty days of service of written notice of entry of this order by Plaintiff

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

26-UDL-00935 RICHARD TOD SPIEKER AND CATHERINE REILLY SPIEKER, CO-TRUSTEES OF THE SPIEKER
LINE 10 LIVING TRUST AND DOING BUSINESS AS STONE CREEK APARTMENTS VS. GLADIS
PERAZA, ET AL.

RICHARD TOD SPIEKER AND CATHERINE REILLY SPIEKER, CO-TRUSTEES OF STEVEN T. NAUMCHIK
THE SPIEKER LIVING TRUST AND DOING BUSINESS AS STONE CREEK
APARTMENTS
GLADIS PERAZA & PEDRO SANCHEZ PRO PER

DEFENDANTS: GLADIS PERAZA AND PEDRO SANCHEZ'S MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS
FOR PRODUCTION, FORM INTERROGATORIES AND SPECIAL INTERROGATORIES

TENTATIVE RULING:

Motion withdrawn by agreement of the parties.

POSTED: 9:56 AM